

tees is expressly required as for an outlay on improvements, does not involve the exercise of any discretion.

19. Where settled real estate has been sold under the Lands Clauses Consolidation Acts, and the purchase-money paid into Court, the Court will appoint trustees of the settlement for the purposes of the Settled Land Act, and order the fund in Court to be paid out to them to be held upon the trusts of the settlement (*a*).

20. **Purchases confined to England.**—By sect. 23, capital money arising under the Act from settled land in England is not to be applied in the purchase of land out of England, unless the settlement expressly authorises the same.

21. **Form of conveyance.**—By sect. 24, land acquired by purchase or in exchange, or on partition, is to be made subject to the settlement, as follows: Freehold land is to be conveyed to the uses, on the trusts, and subject to the powers and provisions subsisting with respect to the settled land, but not so as to increase or multiply charges or powers of charging. Copyhold, customary, or leasehold land is to be conveyed to and vested in the trustees of the settlement on trusts, and subject to powers and provisions corresponding with the uses, trusts, powers, and provisions of the freehold land, but so that the beneficial interest in land held by lease for years shall not vest absolutely in a person who is by the settlement made by purchase tenant in tail, or in tail male, or in tail female, and who dies under twenty-one.

22. **Application of money arising from limited interests.**—By sect. 34, where capital money arising under the Act is purchase-money paid in respect of a lease for years, or life, or for years determinable on life, or in respect of any other estate or interest in land less than a fee simple, or in respect of a reversion, the trustees of the settlement or the Court, as the case may be, may require the same to be laid out, invested, accumulated, and paid in such manner as in the judgment of the trustees or of the Court, as the case may be, will give to the parties interested in that money the like benefit therefrom, as they might lawfully have had from the

(*a*) *Re Harrop's Trusts*, 24 Ch. D. 662; *Re Duke of Rutland's Settlement*, 717; *Re Wright's Trusts*, 24 Ch. D. 140, W. N., 1883, p. 140.